

DEED WITHOUT WARRANTY

The Town of Hingham, a municipal corporation situated in the County of Plymouth, Commonwealth of Massachusetts, by authority conferred by vote of the May, 1987 Annual Town Meeting under Article 53, for and in consideration of Forty Five Thousand Seven Hundred Fifty One (\$45,751.00) Dollars, grants to the Hingham Housing Authority, a public body politic and corporate organized pursuant to Chapter 121B of the Massachusetts General Laws, subject to the covenants, conditions, reservations and restrictions hereinafter set forth, a certain parcel or tracts of land being shown as School Tract II on Sheets 3 and 4 of a plan entitled "Plan of Land - Beal, West and Fort Hill Streets - Hingham, Massachusetts" prepared for the Town of Hingham July 1972 by Perkins Engineering, Inc., Civil Engineers and Land Surveyors, said Sheets 3 and 4 being revised January 10, 1973. Said parcel or tract of land is further bounded and described as follows:

SCHOOL TRACT II

Beginning at a point in the Southerly sideline of Beal Street at the Northwest corner of the herein described premises and Northeast corner of Residence E Parcel;

Thence running along the Southerly sideline of Beal Street, South 71° 52' 30" East, 443.61 feet to a Stone Bound; South 73° 45' 25" East, 332.20 feet to point of curvature;

Thence along a curve to the right on a radius of 2,918.49 feet, an arc distance of 433.85 feet to a point at School Tract IV land;

Thence turning and running along School Tract IV land due South 1,629.06 feet to a spike;

Thence turning and running along land to Open Space Recreation Area on a line 30 feet from and parallel to a brook as shown on plan, 1,500 feet more or less to a point;

Thence along a curved line shown as 10 feet above Mean Sea Level, 875 feet more or less to a point at Residence B land;

Thence turning and running due North 360 feet more or less to side line of Beal Street at the point of beginning and containing 18.1 more or less acres.

Excluded from School Tract II is a 3.086 acre portion of the property described in Deed dated June 15, 1982 and recorded in the Plymouth County Registry of Deeds at Book 5851, Page 233. The Deed of June 15, 1982 was subsequently amended by a Deed Correction dated May 1, 1984 and recorded in the Plymouth County Registry of Deeds at Book 5851, Page 237.

Being a part of the premises conveyed to the grantor by Deed of UNITED STATES OF AMERICA, acting by and through the SECRETARY OF EDUCATION, dated December 17, 1973 and recorded with Plymouth Registry of Deeds at Book 3961, Page 692.

This conveyance is subject to the following express conditions:

1. This property is to be used only for a residential educational facility for emotionally disturbed adolescents operated through the Hingham Housing Authority by the South Shore Educational Collaborative or similar entity, or, if required pursuant to M.G.L. c. 121B, §34, by the Massachusetts Executive Office of Communities and Development.

In the event that a breach of the above condition should occur after December 17, 2003, all right, title and interest in and to the above described property shall revert to and become the property of the Town of Hingham which shall have the immediate right of entry

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thereon, provided, however, that said right of entry shall terminate after thirty years from the date hereof as provided in Massachusetts General Laws, Chapter 184A, Section 3.

This conveyance is subject to an Agreement entitled

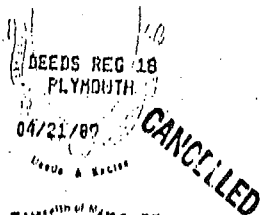
Abrogation and Release of Conditions Subsequent between the UNITED STATES OF AMERICA, acting by and through the SECRETARY OF EDUCATION, and the Town of Hingham dated June 28, 1988 and recorded with Plymouth Registry of Deeds herewith. Except as provided in the above Agreement entitled Abrogation and Release of Conditions Subsequent, all of the provisions of the Deed from the UNITED STATES OF AMERICA acting by and through the Secretary of Health, Education and Welfare to the Town of Hingham dated December 17, 1973 and recorded with Plymouth Registry of Deeds at Book 3961, Page 692 remain in full force and effect with respect to the property.

This Deed is executed and delivered to the Hingham Housing Authority, without covenants or warranties by or on behalf of the Town of Hingham whatsoever, either express or implied.

WITNESS our hands and seals this 7th day of

March, 1989.

The Town of Hingham by the Hingham Board of Selectmen.



TAX 104.88
CHCK 104.88

8825A000 09:50
EXCISE TAX

Kate Mahony
Kate Mahony, Chairman
Edward M. Lewicki
Edward M. Lewicki
Edna S. English
Edna S. English

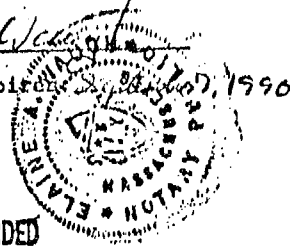
COMMONWEALTH OF MASSACHUSETTS

PLYMOUTH, SS.

March 7th, 1989

Then personally appeared before the above-named Selectmen of the Town of Hingham, Kate Mahony, Edward M. Lewiecki and Edna S. English and acknowledged the foregoing instrument to be the free act and deed of the Town of Hingham and their free act and deeds as Selectmen.

Elaine A. Wagoner
Notary Public
My Commission Expires 12/31/1990



REC'D APR 21 1989 AT 9 59 AM AND RECORDED



TOWN OF HINGHAM

MASSACHUSETTS

BOARD OF APPEALS

TO: THOMAS P. HALL, TOWN CLERK
FROM: Mary Jean Shultz *MS*
DATE: February 6, 1989
SUBJECT: HINGHAM HOUSING AUTHORITY - MODIFICATION OF DECISION

At its regularly scheduled meeting on Thursday, January 26, 1989 the members of the Board of Appeals, (Msrs. Ryan and Randall and Mrs. Horn making up the panel), unanimously voted to accede to the request of the Hingham Housing Authority to clarify some of the language of the Board's Comprehensive Permit issued on *not recd* December 9, 1988 and filed with the Town Clerk on December 14, 1988. Further, the Board voted unanimously to modify the language of certain of the conditions and limitations set forth in the original permit, in accordance with the discussion between the Housing Authority, its counsel Mr. Sullivan, and Mr. Randall held on January 23, 1989.

For your records, I enclose a copy of the modification to the Comprehensive Permit.

cc: G. Condon
C. Sullivan, Esq.
R. Morgan
Planning Board
Board of Selectmen
Conservation Commission
Chief R. Wehter
Press



I, Thomas P. Hall, Town Clerk of Hingham, hereby certify that 20 days have elapsed since filing of the foregoing decision in this office on February 6, 1989, and no notice of appeal from this decision has been received.

Thomas P. Hall

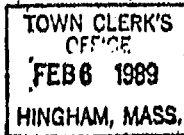
REC'D APR 21 1989 AT 9 59 AM AND RECORDED

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TOWN OF HINGHAM
ZONING BOARD OF APPEALS

IN THE MATTER OF:

Applicant: Hingham Housing Authority
30 Thaxter Street
Hingham, Massachusetts 02043



Property Owner: Town of Hingham
7 East Street
Hingham, MA 02043

Premises: School Tract II
Beal Street at
Squirrel Hill Lane
Hingham, MA 02043

This matter came before the Board on the request of the Hingham Housing Authority ("HHA") for minor modifications to conditions and limitations attached to the comprehensive permit granted to HHA by the Board on December 8, 1988. The comprehensive permit allowed the construction and operation of a two-story, wood frame, residential-educational facility for twelve emotionally troubled adolescents, to be located on a two acre site on the southerly side of Beal Street, across from Squirrel Hill Lane, said site being a portion of the 15 acre parcel known as School Tract II.

Among the conditions and limitations placed on the comprehensive permit in the Board's written decision dated December 9, 1988 were the following:

- (i) that HHA comply with the requirements of the Fire Department, the State Building Code and the Town Wetlands By-law;
- (ii) that not less than three qualified staff persons be on the Premises at all times;
- (iii) that the residents be enrolled in the Quest Program at the East School; and
- (iv) that no other structures be constructed on the 15 acre parcel of which the building site is a part.

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HHA has requested certain minor modifications to the foregoing conditions and limitations in order to provide more specificity and flexibility. The Board is disposed to grant such minor modifications, provided that the substance of the conditions and limitations is preserved. Accordingly, at a regularly scheduled meeting of the Board held on January 26, 1989 the Board voted unanimously to MODIFY the conditions and limitations set forth in its earlier decision so that such conditions and limitations read as follows:

1. The facility shall be constructed by the Hingham Housing Authority and used as a residential-educational facility for 12 emotionally troubled adolescents. Any change in use shall void this comprehensive permit and require further relief in accordance with the Zoning By-law.
2. The facility shall be constructed in substantial conformance with the plans prepared by Gale Engineering Company, Inc. and Kanda Associates Architects and submitted with the application, except as modified to meet the recommendations of the Fire Department described in Paragraph 3 below.
3. The applicant shall comply with the recommendations of the Fire Department set forth in a certain memorandum dated 10 November, 1988 from Kanda Associates Architects to Gretchen Condon, Executive Director of the Hingham Housing Authority, and shall comply with the State Building Code.
4. The facility shall be staffed by responsible, qualified personnel, and at least three staff persons shall be on site when one or more residents are present. The operator of the facility shall take all reasonable precautions to restrict the residents from entering neighboring properties and shall work with abutters to address security concerns.
5. The facility and the grounds shall be maintained in a first class condition at all times.
6. The residents of the facility shall be enrolled in the Quest Program at the East School or in a similar program.
7. No other structures shall be constructed on the parcel identified as School Tract II without the appropriate approval of state and local authorities.

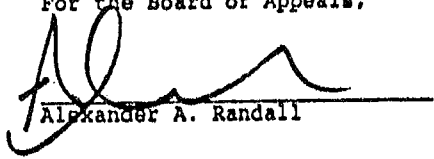
Each of the foregoing conditions and limitations is in and of itself material to the Board's decision on the application. Accordingly, if any of the foregoing conditions are found by a court of competent jurisdiction to be void or unenforceable,

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this comprehensive permit shall immediately terminate and the property shall thereafter be brought into compliance with the requirements of the Zoning By-law.

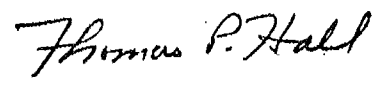
For the Board of Appeals,

1-27-89
Dated


Alexander A. Randall

XP-1793/h
1/24/89

I, Thomas P. Hall, Town Clerk of Hingham, hereby certify that 20 days have elapsed since the filing of the foregoing decision in this office on February 6, 1989, and no notice of appeal from this decision has been received.





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REC'D APR 21 1989 AT 9 59 AM AND RECORDED